

jore pœna affectus, quam legibus statut' est, non est infamis. Pœna gravior ultra legem posita æstimationem conservat. Confessus in jure pro judicâto habetur, cum quodammodo sua sententia damnatur. Cum consensu sponte mitius est agendum.

In hac curia non agitur de delictis ordinariis, ne dignitas hujus curiæ vilesceret.

Quicquid judicis auctoritati subjicitur, novitati non subjicitur.

[67]

C A P. VI.

A Court for Redresse of Delayes of Judgements in the Kings great Courts.

24 E. 3. cap. 5.
stat. 1.
Rot. parl. 2 R 2.
nu. 63. confirm-
ed by parliament.

Judgements de-
layed.

* Nota, by good
advice of the
chancellour,
treasurer, and
justices.

Good accord.

Vide Regist.
fo. 124. b.
Rex Johanni de
B. Militi, &c.

THIS court is raised by the statute of 14 E. 3. which followeth in these words.

Item, Because divers mischieves have happened of that, that in divers places, as well in the chancery, as in the kings bench, the common bench, and in the exchequer, before the justices assigned, and other justices to hear and determine deputed, the judgements have been delayed, sometimes by difficulty, sometimes by divers opinions of the judges, and sometime for some other cause: it is assented, established, and accorded, that from henceforth at every parliament shall be chosen a prelate, two earls, and two barons, which shall have commission and power of the king to heare by petition delivered unto them the complaints of those that will complaine them of such delayes and grievances made, and they shall have power to do come before them at Westminster, or elsewhere, where the places or any of them shall be, the tenor of records and proceses of such judgements so delayed, and to cause the same justices to come before them, which shall be then present to hear their cause and reasons of such delayes: which cause and reason so heard by * good advice of themselves, the chancelor, treasurer, the justices of the one bench, and of the other, and other of the kings counsell, as many and such as shall seem convenient, shall proceed to take a good accord, and make a good judgement: and according to the same accord so taken, the tenor of the same record, together with the judgement which shall be accorded, shall be remaunded before the justices, before whom the plea did depend; and that they shall give judgement according to the same record: and in case it seemeth to them that the difficulty be so great, that it may not well be determined without assent of the parliament, that the said tenor or tenors shall be brought by the said prelate, earles, and barons in the next parliament

Cap. 6. For Redresse of Delays of Judgements.

67

parliament, and there shall be a final accord taken what judgement ought to be given in this case, and according to this accord it shall be commanded to the judges before whom the plea did depend; that they shall proceed to give judgement without delay.

Before the making of this statute delay of judgements was forbidden both by the common law, and by acts of parliament. By the common law. 1. It is required, that *plena et celeris justitia fiat partibus*, &c. not *plena* alone, nor *celeris* alone, but both *plena et celeris*. All writs of *præcipe quod reddat*, are, *Quod juste et sine dilatione reddat*, &c. All judicial writs are *sine dilatione*, &c. 2. There did and yet doth lye a writ *de procedendo ad judicium*, when the justices or judges of any court of record, or not of record, delayed the party plaintiff or defendant, demandant or tenant, and would not give judgement: and thereupon an *alias plur'*, and an attachment, &c. doth lye. And the words of the writ be, *Quia redditio judicii loquelæ quæ est coram vobis*, &c. *de quadam transgressione eidem A. per præfat' B. illata, ut dicitur, diuturnam cepit dilationem ad grave damnum ipsius A. sicut ex querela sua accepimus, vobis præcipimus quod ad judicium inde reddendum cum ea celeritate quæ secundum legem et consuetudinem regni nostri procedas*, &c.

3. Likewise when justices or judges of any court of record, or not of record gave judgement, and delayed the party of his execution, the party grieved may have a writ *de executione judicii*; by which writ the justices or judges are commanded, *Quod executionem judicii nuper redditii*, &c. *de loquela quæ fuit*, &c. *per breve nostrum*, &c. *sine dilatione fieri fac'*. And thereupon an *alias, plur'* and attachment, &c. do lye.

4. By the meeting together upon adjournment of the cause out of the court, where the cause dependeth, &c. All the judges, &c. which now we call an exchequer chamber cause, warranted by the common law and ancient presidents before this statute: and the frequent use of this court of exchequer chamber hath been the cause that this court upon the act of 14 E. 3. hath been rarely put in ure.

5. By the kings writ comprehending *quod si difficultas aliqua interfit*, that the record should be certified into the parliament, and to adjourne the parties to be there at a certain day. *Si obscurum et difficile sit judicium, ponantur judicia in respect' usque magnam curiam*. An excellent record, whereof you may read in the parliament holden at Westminster the Tuesday after the translation of Becket, anno 14 E. 3.

Secondly, by acts of parliament. *Nulli vendemus, nulli negabimus, nec differemus justitiam vel rectum*.

That it shall not be commanded neither by the great-seale, nor by the little-seale, nor by letters, nor any other cause to delay right: and albeit such commandement come, &c. that by them the justices surcease not to do right in no manner. *Vide* 2 E. 3. cap. 8. 14 E. 3. cap. 14. 18 E. 3. stat. 3. 2 R. 2. a statute not in print, Rot. parl. nu. 51. whereby it is enacted, that no justice shall stay justice for any writ, letter of the great-seal or privy-seal, or other commandement whatsoever against the laws and statutes before

IV. INST.

G

that

Regist. 137. a.
F. N. B. 23. c.
And so upon counsels granted.

Regist. fo. 22.
F. N. B. 153. b.
&c. Cust. de
Norm. cap. 27.

[68]

Diuturna dilatio.

Regist. fo. 18.
F. N. B. fo. 20. a.
&c.

See hereafter, ca. Exchequer and Exchequer Chamber.

2 E. 3. fo. 7.
Ellys Callers
case. Braet. lib. r.
ca. 2. rot. parl.
14 E. 3. nu. ult.
Sir Geoff. Stan-
tons case.

Mag. Cart.
ca. 29.

2 E. 3. fo. 3.
per Aldham.
14 E. 3. jour. 24.
18 E. 3. 47. 57.
31 E. 3. an. 161.
39 E. 3. 37.
11 H. 4. 5. 76.
9 H. 6. 58. b.
5 E. 4. 132.
Fortesc. cap. 6.
F. N. B. 240. d.